

Changing Health Care: The Constitutional Process

Source Packet for GrassrootsMVT.org Survey Introduction

Suggested file path for website: [/sources/changing-health-care-constitutional-process-sources.pdf](#)

Prepared June 17, 2026. This packet provides source support for the survey intro and questions. It is not legal advice. It is a plain-language source guide for public discussion.

Why this packet exists

The survey asks Wyoming citizens whether constitutional questions should be handled through the constitutional process. The sources below support five factual points used in the survey:

- The Wyoming Constitution begins with the people and recognizes that political authority comes from the people.
- Article 1, Section 38 protects competent adults' health care decisions and directs Wyoming to preserve those rights from undue governmental infringement.
- The Wyoming Supreme Court ruled in January 2026 that abortion restrictions violated Article 1, Section 38 as applied to health care decisions.
- Wyoming has a defined constitutional amendment process that requires legislative proposal and voter ratification.
- Wyoming's judicial selection system is constitutional, using a judicial nominating commission, governor appointment, and voter retention elections.

1. The people are the source of Wyoming's political authority

The Wyoming Constitution's Preamble begins with the people. Article 1, Section 1 says all power is inherent in the people and that free governments are founded on their authority.

Key support for the survey: We are Wyoming. Our representatives work for us. The Constitution belongs to the people.

Source: [Wyoming Constitution, Preamble and Article 1, Section 1](#)

2. Article 1, Section 38: health care decisions

Article 1, Section 38 is titled 'Right of health care access.' It protects competent adults' health care decisions. It also recognizes health care provider payment rights and directs Wyoming to preserve protected rights from undue governmental infringement.

Key support for the survey: health care decisions are part of the constitutional framework now being discussed.

Source: [Wyoming Constitution, Article 1, Section 38](#)

3. January 2026 Wyoming Supreme Court ruling

On January 6, 2026, the Wyoming Supreme Court issued its decision in *State v. Johnson*. The official summary explains that the Court considered Article 1, Section 38 and the 2023 abortion laws, and the majority held the challenged laws unconstitutional. The opinion states that Article 1, Section 38 protects competent adults' health care decisions and that the State did not meet its burden for the challenged restrictions.

Key support for the survey: the legal framework changed because the court ruled on the constitutional question. The survey asks whether any change should go through the constitutional amendment process.

Source: Wyoming Supreme Court official summary, *State v. Johnson*

Source: Wyoming Supreme Court opinion, *State v. Johnson*

4. Constitutional amendment process

Article 20 of the Wyoming Constitution governs amendments. It provides that amendments may be proposed in either legislative chamber. A proposed amendment requires agreement by two-thirds of all members of each house voting separately, then submission to the electors at the next general election. If a majority of electors ratify the amendment, it becomes part of the Constitution.

Key support for survey Questions 1, 2, 4, and 5: if Wyoming wants to change the constitutional framework, the Constitution itself provides the route.

Source: Wyoming Constitution, Article 20, Sections 1-2

5. Oath of office

Article 6, Section 20 sets the oath for senators, representatives, judicial officers, state officers, and county officers. The oath requires officers to support, obey, and defend the United States Constitution and the Wyoming Constitution.

Key support for survey Question 7: elected representatives are bound by oath to the Constitution. When a court rules on constitutional meaning, the lawful choices are to operate within constitutional guardrails or seek a constitutional amendment.

Source: Wyoming Constitution, Article 6, Section 20

6. Judicial selection and retention

Article 5, Section 4 establishes the structure for filling Wyoming Supreme Court and district court vacancies. The governor appoints from a list of three nominees submitted by the judicial nominating commission. The same section provides for judicial retention elections.

Key support for survey Question 8: because judicial selection and retention are constitutional structures, any major change belongs in the constitutional amendment process.

Source: Wyoming Constitution, Article 5, Section 4

Source: Wyoming Judicial Branch: Judicial Nominating Commission